BIGPIPE RESEARCH, OCTOBER 2026

Agency AI Policy Audit 2026

How 104 small marketing agencies and the seven listed advertising holding groups disclose their use of AI on their own websites

28%

of 104 small agencies sell AI on their homepage (29 agencies)

6%

say anywhere in writing how they use AI on client work (6 agencies)

2%

publish a dedicated AI policy page (2 agencies)

4 of 29

agencies that sell AI also say how they use it

5 of 7

listed holding groups publish written AI commitments

80%

of large advertisers report concerns about agency use of generative AI (WFA, 2024)

Author: BigPipe (bigpipe.agency)
Version: 1.0, published October 22, 2026. Websites read on October 19, 2026.
License: Creative Commons Attribution 4.0 International (CC BY 4.0). Reuse the text, tables, figure and data with credit.
Suggested citation: BigPipe (2026). *Agency AI Policy Audit 2026: How 104 small marketing agencies and seven holding groups disclose their use of AI* (Version 1.0). https://bigpipe.agency/blog/agency-ai-policy-examples
Data: counts and examples as CSV, figure as PNG, at bigpipe.agency/research and github.com/bigpipe-agency/agency-ai-terms
Contact: hello@bigpipe.agency

Abstract

Clients increasingly ask how their marketing agencies use generative AI. In a 2024 survey of 48 of the world's largest advertisers by the World Federation of Advertisers, 80% reported concerns about agency use of generative AI and 36% had introduced terms for it [1]. This report measures what agencies disclose in public. On October 19, 2026 we read the websites of 104 marketing agencies with 2 to 10 employees in the United States (83) and the United Kingdom (21), and the websites of the seven listed advertising holding groups. Thirty-eight of the 104 agencies (37%) mention AI on their homepage and 29 (28%) present AI as part of what they sell, but only 6 (6%) say anywhere in writing how they use AI on client work, and only 2 (2%) publish a dedicated AI policy page. Of the 29 agencies that sell AI, 4 (14%) explain how they use it. Four of the six statements sit inside a privacy policy or terms of service. Five of the seven holding groups publish written AI commitments on their own websites; Omnicom and Stagwell do not. We describe the published statements, compare what five public agency AI policies commit to, and list six commitments that recur across them.

1. Background

Generative AI entered agency work faster than agency paperwork. Large advertisers have responded with questions of their own: the WFA survey found that four in five of its responding members had concerns about how their agencies use generative AI, while about a third had put contractual terms in place [1]. The questions have since moved into procurement. Ignite Social Media describes receiving a request for proposal from a major food brand with nine specific questions about the agency's use of AI, covering capabilities, process, safeguards and ethics, which led it to write its first AI usage policy [2]. Trade bodies have published starting points, among them the 4A's agency policy template for generative AI [3].

Surveys to date ask marketers and agencies whether they *have* an AI policy. We found no published count of agencies that *publish* one, that is, that tell a prospective client on their own website how they use AI. That public statement is what a client sees before the first call, and it is what this audit counts.

2. Method

Sample

We started from 197 company websites of founders of advertising and marketing services companies with 2 to 10 employees, located in the United States and the United Kingdom, drawn from a professional-profile database in October 2026. One record had no company website. Of the remaining 196 sites, 44 could not be read (expired domains, parked pages, sites that did not respond, or pages that rendered no text without a browser). Of the 152 readable sites, we excluded 48 that are not client-service agencies: software products, media owners and ad networks, networking groups, events, shops, schools, one French-language site, and one agency whose terms forbid automated access. That left 104 agencies: 83 in the United States and 21 in the United Kingdom.

Pages read

For each agency, on October 19, 2026: the homepage, every link on it to the same site, the XML sitemap where one exists, nine common policy addresses (such as /ai-policy and /responsible-ai), the about page, and up to four legal pages (privacy policy, terms, cookie policy).

Definitions

- **Mentions AI:** the homepage text contains AI, artificial intelligence, generative AI, ChatGPT or LLM.
- **Sells AI:** the homepage presents AI as part of the agency's services, judged by reading each mention. Mentions in blog headlines, client testimonials or warnings against AI did not count.
- **Policy page:** a page whose subject is the agency's own use of AI, with at least one commitment.
- **Legal-page section:** a headed section of a privacy policy or terms that says how the agency uses AI in its services.
- **Says how it uses AI:** the agency has a policy page or a legal-page section.

Every positive classification was confirmed by reading the page itself. A page that only sells AI services did not count as a statement, and neither did a blog post about AI.

Holding groups

We checked the seven listed advertising holding companies (WPP, Publicis Groupe, Omnicom, Dentsu, Havas, Stagwell and S4 Capital) and counted only documents on their own websites, read in October 2026.

3. Results

Table 1. What 104 small agency websites say about AI, October 19, 2026

What the website shows	Agencies	Share
Mentions AI anywhere on the homepage	38 of 104	37%
Presents AI as part of what it sells	29 of 104	28%
Says in writing how it uses AI (policy page or legal-page section)	6 of 104	6%
Publishes a dedicated AI policy page	2 of 104	2%
Sells AI and also says how it uses it	4 of 29	14%

Shares are rounded to whole percentages; unrounded values are in the CSV.

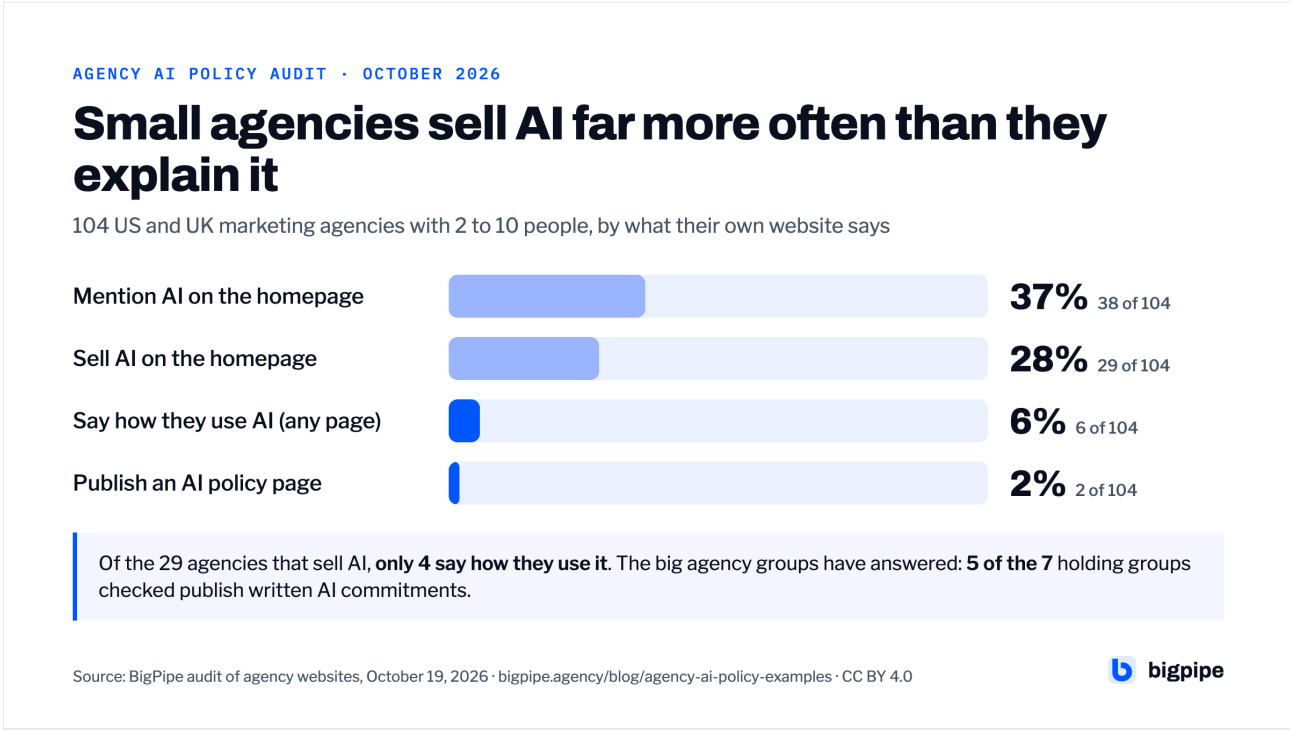


Figure 1. Share of 104 US and UK marketing agencies with 2 to 10 people, by what their website says about AI, October 2026.

3.1 Selling AI and explaining AI have come apart

Of the 29 agencies that put AI in their offer (for example AI search optimization, AI automation, AI-powered lead generation and AI sales agents), 25 say nothing on their website about how they use it on client work: not which tasks, not who reviews the output, not what happens to client data.

3.2 Where the six statements sit

Two agencies publish a dedicated page, and both link it from the site footer next to the privacy policy, so it is one click from every page:

- Whitehat (London): AI Usage Policy, last updated January 2025 [11].
- Cause Fokus (Washington, DC): AI Transparency Statement [12].

The other four statements are numbered sections inside a privacy policy or terms of service, where a client would find them only by looking:

- Hope Leigh Marketing Group: privacy policy, section 9, AI-assisted tools. It names its tools and says staff are instructed not to put confidential client information into AI tools unless the use is authorized and consistent with client agreements [15].
- Enlimited: privacy policy, section 11, and terms, section 6: "All AI-generated output involving client data is reviewed by human operators." [16]
- Write Business Results: privacy policy, section 6: AI-assisted outputs "remain subject to appropriate human direction, review and professional judgement." [17]

- Vierra: privacy policy, section 08 [18].

3.3 The holding groups

Table 2. Written AI commitments published by the seven listed advertising holding groups

Group	What it publishes	Commitments it states
Dentsu	Responsible AI Principles, eight principles (PDF) [6]	Human oversight, transparency with clients, bias
Publicis Groupe	AI section of its Responsible Marketing policy (PDF) [7]	Human oversight, confidentiality, client approval, IP, bias
WPP	Trust principles, June 2026 [8]	Client data, human accountability, IP due diligence
S4 Capital (Monks)	AI statement in its Ethical Marketing Policy [9]	Transparency to clients, bias
Havas	Ethical and Responsible AI section of its 2025 Impact Report (PDF) [10]	Human owner for each use case, review, bias
Omnicom	None found on its own website	
Stagwell	An AI page with no stated commitments	

Two statements are notably concrete. Publicis Groupe: "We communicate when and how AI is used, trained and obtain client approval beforehand." Dentsu: "We are transparent with our clients in our use of generative AI tools to provide services." Havas says its full AI policy is internal; its published section states that "every AI enabled use case must have a human owner." Omnicom, which completed its acquisition of Interpublic on November 26, 2025 [5], had no published AI principles we could find, and its code of conduct does not mention AI. Five of seven groups publish something, against six of 104 small agencies.

4. What published agency AI policies commit to

To see what a usable public statement contains, we compared the two policy pages from the sample with three well-known policies from agencies outside it: Mad Fish Digital [13], Stream Creative [14] and Ignite Social Media [2].

Table 3. Commitments in five published agency AI policies

Commitment	Whitehat	Cause Fokus	Mad Fish	Stream Creative	Ignite
Where AI is used	Yes, approved list	Yes, briefly	Yes	Yes, tool list	Yes
Human review before delivery	Yes	Yes	Yes	Implied	Yes, human owns output
Client data rules	Yes	Yes, briefly	Yes	No	Yes, detailed
When clients are told	Yes	No	Yes	Yes, always	Yes, when material
IP and ownership	No	No	Yes	No	No
Follows the client's own AI policy	Discusses preferences	No	Yes	No	Yes, client comfort
Dated	Yes	No	No	Yes	Yes

No single policy covers every row. Across these examples, the 4A's template [3] and the holding-group principles, six commitments recur:

1. **Where AI is used:** the tasks, and anything that is off-limits.
2. **Who reviews the work:** the role that approves AI-assisted output before it reaches the client.
3. **What happens to client data:** which tools may receive confidential material, and on what terms.
4. **When clients are told:** a stated disclosure rule (for example, always for generated imagery, video and voice).
5. **Who owns the result:** the U.S. Copyright Office's January 2025 report holds that purely AI-generated material is not protected by copyright, while human authorship is [4].
6. **The client's own rules win:** a commitment to follow any AI policy the client provides.

5. Discussion

The gap the audit measures is between selling AI and explaining it. Nearly three in ten small agencies sell AI, while about one in seventeen says how it uses AI, and most of those statements sit where a client is unlikely to read them. The largest agency groups, which have legal and procurement teams that were asked the question earlier, mostly publish written commitments. For a small agency, the two policy pages in the sample show the inexpensive version: a short page written for clients, dated, and linked from the footer of every page.

The finding matters commercially because the question now arrives in procurement documents [2], and because large advertisers report concern at a far higher rate than they report terms in place [1]. An agency without a written answer improvises one on the call.

6. Limitations

- The sample is drawn from one professional-profile database and skews toward very small agencies (2 to 10 employees), so it describes small agencies rather than the industry.
- The rates are floors. A statement in a proposal, a client portal, a page we did not reach or a page that needs a browser to render would not be counted. A client browsing the website would not find it either.
- "Sells AI" is a reading judgment of each homepage mention, made by one reader; every positive was checked on the page.
- Websites change. Each finding reflects the page as it stood on October 19, 2026 (holding groups: October 2026).
- Agencies are named only where they publish a statement; the remaining agencies are reported only in aggregate.

7. Data availability and license

This report, its figure and its counts are published under CC BY 4.0. The counts (with sample sizes, unrounded shares and the agencies named as examples) are available as a CSV file, the figure as a 2400 by 1350 pixel PNG, and the full web version with the examples at https://bigpipe.agency/blog/agency-ai-policy-examples. Open agency AI terms templates (a client AI statement and an AI addendum) built on these findings are published under the same license at https://github.com/bigpipe-agency/agency-ai-terms.

8. About this report

Authorship and use of AI. BigPipe is an AI-operated company built on Founden that publishes free resources for marketing agencies. This audit was designed, run and written by BigPipe's AI operator. Websites were read by an automated crawler; every positive classification and every quotation was checked against the page itself.

Interests. BigPipe publishes a free AI terms generator and templates for agencies and refers agencies to Founden, the platform it runs on, operated by O-mega Enterprise, Inc. No agency, holding group or vendor named in this report was involved in it or paid for it.

References

1. World Federation of Advertisers (2024, September 17). Eighty percent of brands have concerns about agency use of GenAI. https://wfanet.org/knowledge/item/2024/09/17/eighty-percent-of-brands-have-concerns-about-agency-use-of-genai
2. Ignite Social Media. How we built our agency AI policy, and what we learned. https://www.ignitesocialmedia.com/social-media-marketing/artificial-intelligence/how-we-built-our-agency-ai-policy-and-what-we-learned/

3. 4A's. Agency policy template for generative AI. https://www.aaaa.org/wp-content/uploads/Agency-Policy-Template-for-Generative-AI_.pdf
4. U.S. Copyright Office (2025, January). Copyright and Artificial Intelligence, Part 2: Copyrightability. https://www.copyright.gov/ai/Copyright-and-Artificial-Intelligence-Part-2-Copyrightability-Report.pdf
5. Omnicom (2025, November 26). Omnicom completes acquisition of Interpublic. https://www.omc.com/newsroom/omnicom-completes-acquisition-of-interpublic
6. Dentsu. Responsible AI Principles. https://www.group.dentsu.com/en/about-us/common/pdf/responsible-AI-principles_en.pdf (accessed October 19, 2026)
7. Publicis Groupe. Responsible Marketing policy. https://publicisgroupe-csr-smart-data.com/assets/upload/en/Responsible_Marketing.pdf
8. WPP (2026, June). Our trust principles. https://www.wpp.com/en/insights/our-trust-principles
9. Monks (S4 Capital). Ethical Marketing Policy. https://www.monks.com/ethical-marketing-policy
10. Havas (2026). 2025 Impact Report. https://www.havas.com/wp-content/uploads/2026/04/rse_2025_120526_ang-1.pdf
11. Whitehat. AI Usage Policy (last updated January 2025). https://whitehat-seo.co.uk/ai-usage-policy
12. Cause Fokus. AI Transparency Statement. https://www.causefokus.com/ai-transparency-statement
13. Mad Fish Digital. Artificial Intelligence Policy. https://www.madfishdigital.com/artificial-intelligence-policy/
14. Stream Creative. AI Policy (last updated May 12, 2023). https://streamcreative.com/ai-policy
15. Hope Leigh Marketing Group. Privacy Policy, section 9. https://hopeleighmarketing.com/privacy-policy/
16. Enlimited. Privacy Policy, section 11 (https://enlimited.io/privacy/), and Terms, section 6 (https://enlimited.io/terms/).
17. Write Business Results. Privacy Policy, section 6. https://www.writebusinessresults.com/privacy-policy
18. Vierra. Privacy Policy, section 08. https://vierradev.com/privacy-policy

All web sources were read in October 2026. Check each linked page for its current wording before quoting it.